



State of New Jersey

PHILIP D. MURPHY
Governor

TAHESHA L. WAY
Lt. Governor

OFFICE OF THE STATE COMPTROLLER
MEDICAID FRAUD DIVISION
P.O. BOX 025
TRENTON, NJ 08625-0025
(609) 826-4700

KEVIN D. WALSH
Acting State Comptroller

JOSH LICHTBLAU
Director

June 20, 2024

Monroe Adult Day Care
Parinda Desai
Rima Patel
Shilpa Shah
Rahul Shah
Ankita Patel
24 Dugans Grove Road
Millstone, New Jersey 08535
Sent via certified electronic mail [REDACTED]

Re: Notice of Overpayment
Case Number: [REDACTED]

Dear Provider:

This letter is in response to your correspondence dated May 2, 2024, regarding the Notice of Overpayment dated February 14, 2024 that the Office of the State Comptroller, Medicaid Fraud Division (MFD) sent to Monroe Adult Day Care (Monroe ADC), [REDACTED]. As explained in its February 14th letter, MFD identified two categories of claims in which Monroe ADC improperly submitted 80 claims for which it received Medicaid overpayments totaling \$6,641.60 that it must repay to the Medicaid program. In its May 2nd correspondence, Monroe ADC provided additional information, which is outlined below.

1. While the recipients were admitted to an inpatient facility, such as a hospital or skilled nursing/long term care center– MFD originally identified 18 claims, with overpayments of \$1,533.40 (in violation of N.J.A.C. 10:164-1.5(g)(3)). Monroe ADC did not mention 16 out of 18 claims in its correspondence. The other two claims are for the services provided before the approval of prior authorization. **Accordingly, MFD has no basis to alter its prior finding that Monroe ADC must repay the Medicaid program for the payments it received for these claims.**
2. While the recipients were receiving services from another adult medical day care provider– 62 claims, with overpayments of \$5,108.20 (in violation of N.J.A.C. 10:49-9.8 and

N.J.A.C. 10:164-1.5(g)(1))). MFD reviewed the documentation provided by Monroe ADC and found that it did not provide any documentation for 15 claims totaling \$1,102.50. There are two claims for \$168.10 that shows Monroe ADC provided services after the expired prior authorization; nine claims for the total amount of \$758.50 were missing daily attendance record and for two claims for \$172.20, the daily attendance record had no arrival and departure time. Therefore, MFD has no basis to alter its prior finding that Monroe ADC must repay the Medicaid program for the payments it received for these 28 claims for the total amount of \$2,201.30.

However, MFD review also found that Monroe ADC documentation supported the 34 claims for \$2,906.90. **Accordingly, MFD adjusted its prior findings and Monroe ADC must repay the Medicaid program for 28 claims with an overpayment amount of \$2,201.30.**

In sum, MFD finds that Monroe ADC must pay the overpayment amount of \$3,734.70. Please mail a Certified Check in the amount noted above made payable to "Treasurer, State of New Jersey" to the address below within ten (10) business days from the date of this letter. Please insert on the memo line of the check "[REDACTED]".

Treasurer, State of New Jersey
Division of Revenue
200 Woolverton Street, Building 20
Lockbox 656
Trenton, New Jersey 08646
Attn: Processing Bureau

Please also forward a copy of the Certified Check and the transmittal letter to my attention at Office of the State Comptroller, Medicaid Fraud Division, P.O. Box 025, Trenton, New Jersey, 08625-0025 or via email to [REDACTED]

If a check is not received within ten (10) business days from the date of this letter, MFD will take further appropriate action, including but not limited to: issuing a Notice of Claim, Certificate of Debt, and Notice of Withholding, which would withhold a portion of your future claims payments, and/or any other remedy available to MFD by law.

This Notice of Overpayment documents and seeks a recovery relating to the improper billing of claims by the provider (entity). Please be advised that this Notice is a public document and, as such, may be placed on the OSC/MFD website.

Sincerely,

KEVIN D. WALSH
ACTING STATE COMPTROLLER

By: Tracy Livingston
Tracy Livingston, Assistant
Director Data and Fiscal

Medicaid Fraud Division

Copy: Don Catinello, Deputy Director, MFD
Glenn Geib, Recovery Supervisor, MFD

MFD Update - July 25, 2024

On July 25, 2024, MFD received a Certified Check, dated July 15, 2024, from Monroe Adult Day Care for the revised full amount due, \$3,734.70.